ORDER

VICTORIAN CIVIL AND ADMINISTRATIVE TRIBUNAL **Proceeding no: RT252398**
RENTAL DISPUTE RESOLUTION VICTORIA

APPLICANT(S):	Chawakorn Kamnuansil , renter
	Podjana Tienmon , renter
RESPONDENT(S):	Areal Property Group Pty Ltd, rental provider
OTHER INFORMATION (if applicable):	Relevant legislation: *Residential Tenancies Act 1997* (Vic) section(s) 73
	Rented premises: 33 Camberwell Rd, Hawthorn East, VIC, 3123
ORDERS MADE BY:	M Taylor, delegate of the Principal Registrar
DATE ORDERS MADE:	27 June 2025

This document contains important information about your case. It includes instructions about what you need to do and may set time limits that need to be followed.

Background and findings

This proceeding has been processed by the Early Resolution Team.

The Tribunal records that the parties have reached a settlement.

Orders

The proceeding is struck out.

The applicant has a right to seek reinstatement.

M Taylor, delegate of the Principal Registrar

Residential Tenancies Application

This is a receipt of your case **RT252398** for a dispute as a **Renter** about a **Urgent Repairs** issue related to a **House, unit or apartment**

Renter details (as they appear in the rental agreement)

Applicant Type:	**Individual**
Full Name:	**Chawakorn Kamnuansil**
Phone Number:	0449962645
Email Address:	ck.chawakorn@gmail.com

Applicant Type:	**Individual**
Full Name:	**Podjana Tienmon**
Phone Number:	0450452465
Email Address:	bewty980219@gmail.com

Representative details

Are you completing this form on behalf of someone else as their representative:
No

Rental Provider details (NOT the real estate agent)

Respondent Type:	**Company**
Full Name:	Areal Property Group Pty Ltd

Representative details

Is this rental property managed by a real estate agency or other representative:
Yes, by a Real estate agent

Representative Name:	Areal Property Group Pty Ltd
ABN:	40645223212
Phone Number:	03 9818 8991
Email Address:	sylvia.hao@areal.com.au

Dispute details

Rental premises:

33 Camberwell Rd, Hawthorn East, VIC, 3123

Urgent repair details

Have you raised the issue(s) in writing with your Rental Provider or real estate agent:
Yes

Uploaded documents: 19 conversations saved on Sun Jun 22 2025.pdf

Select the issue(s) with the property:

Flooding or serious flood damage:
Water damage discovered on 16 April 2025 in bedroom above bed area. Wall bulge appeared and spread rapidly from ceiling to floor within 24 hours. Source identified as hot water system leak in ceiling on 28 April 2025. Bedroom has been unusable for over 2 months due to persistent moisture, mold growth, structural damage, and safety concerns. Complete remediation including wall restoration and carpet replacement has not been completed.

Property Propdoes not meet?minimum standards:
Bedroom fails to meet minimum standards under Residential Tenancies Act due to: (1) Unusable sleeping area for 2+ months, (2) Persistent moisture and mold creating health hazards, (3) Structural damage compromising safety, (4) Inadequate ventilation causing ongoing damp conditions. Property manager has failed to restore habitability within reasonable timeframe despite multiple requests.

Water services (burst):
Hot water system leak in ceiling identified on 28 April 2025 by plumber. Initial leak caused extensive water damage to bedroom wall and flooring. While source leak reportedly fixed, internal damage including wall restoration, mold remediation, and carpet replacement remains incomplete. Water damage continues to impact habitability of bedroom.

Unsafe or insecure fault or damage in the property: including?pests, mould or damp?caused by or related to the building structure:
Ongoing mold growth and damp conditions in bedroom creating health hazards. Structural wall damage from water ingress compromises safety. Persistent musty odors and poor air quality documented in medical certificate from Era Health dated 23 June 2025. Bedroom remains uninhabitable due to safety and health concerns from unresolved water damage.

Steps taken to resolve the issue:
Water damage was first reported on 16 April 2025. Property management was transferred from Hilary Ho to Sylvia Hao on the same day without addressing the urgent issue. Multiple follow-up emails were sent on 20 April, 23 April, and throughout May 2025. A plumber identified the source as a hot water system leak on 28 April 2025, but complete repairs including wall restoration, mold remediation, and carpet replacement have not been completed. The bedroom remains unusable for over 2 months. Repairs are now scheduled

for 24 June 2025 at 8:30 AM with no alternative accommodation provided.

Have you raised the issue(s) in writing with your rental provider or real estate agent:
Yes

How do you want this dispute to be resolved:
1. Immediate provision of alternative accommodation during repair period
2. Compensation for rent paid while bedroom was unusable (approximately $1,400-1,500 per month for 2+ months)
3. Complete restoration of property to habitable condition
4. Protection orders preventing retaliation
5. Assurance that all future repairs will be completed within reasonable timeframes
6. Compensation for stress, inconvenience, and health impacts as documented by medical certificate

I want VCAT to redirect my rent payments into a Rent Special Account until repairs are completed

Supporting documents

Rental agreement:	Residential Rental Agreement [2024-12-23] 1803_243 Franklin St Melbourne VIC 3000.pdf
Evidence:	3.0 Rent receipts.jpeg, 1.0Email Evidence Summary.pdf, 0.0 Cover Message.pdf, Orders Requested.pdf, Emergency Statement.pdf, 1.3MERGE GMAIL.pdf, 1.2Sumary.pdf, 5.0 Doctor's letter from Era Health.pdf, 1.1Email Evidence - Unit 1803 Rental Dispute.pdf

Acknowledgment

By submitting this form, I understand and acknowledge that:
- ✓ To the best of my knowledge, all information provided in this application is true and correct
- ✓ An RDRV application is an application to VCAT
- ✓ It is an offence under section 136 of the Victorian Civil and Administrative Act 1998 to knowingly give false or misleading information

Full name of person completing this form
Chawakorn Kamnuansil

Date of Acknowledgement

24/06/2025

Application by a Residential Rental Provider to the Victorian Civil and Administrative Tribunal

Reference Number: **R202518589/00**

Applicant (Residential Rental Provider/s)

Ting Zhang

Representative (Agent)

Areal Property (Mpm) Pty Ltd

33 Camberwell Road
HAWTHORN EAST VIC 3123

Org ID: 3701697

Phone: 0398188991
Fax:

Respondent (Renter/s)

Chawakorn Kamnuansil
Podjana Tienmon

1803/243 Franklin Street
MELBOURNE VIC 3000

Rented Premises

1803/243 Franklin Street
MELBOURNE 3000

The claim is for

Section	Description
322(1),91ZL	possession - unfit or unsafe

Compensation amount claimed: $2825

More details about the claim are

We are claiming the full bond amount of $2,825 due to denied access to the property. As we cannot determine the extent of any damage or cleaning required, we seek the full bond to cover potential costs. Further details and evidence will be provided once access is granted.

Bond lodged

Who supplied bond	Bond No.	Amount
Renter:	15733722	$2,825.00
Homes Victoria:		$0.00
Total Amt Paid:		**$2,825.00**

Previous VCAT File Numbers

Signature

Sylvia Hao

Application sent to renter on

21 July 2025 by Email

Addresses:
ck.chawakorn@gmail.combewty980219@gmail.com

Hearing Details

Hearing not yet scheduled

ADVICE TO PARTIES ABOUT TRIBUNAL HEARINGS

An application has been made to the Residential Tenancies List of the Victorian Civil and Administrative Tribunal. The Tribunal plans to hold a hearing about the application. You will receive a notice of hearing in the mail. It will either:

- Confirm or advise of a change of the date, time and venue of a planned hearing if that information appears above; or
- Advise you of the date, time and venue if the words 'Hearing not yet scheduled' appear above.

You have the right to appear at the hearing and present your case. Please bring to the hearing all documents and witnesses on which you intend to rely. If you fail to attend the hearing, the Tribunal may hear and determine the matter in your absence.

If you think you can resolve the dispute before the hearing, please contact the other party.

Any request for adjournment of the hearing, other than a 3 month adjournment, must be received by the Tribunal no later than 4:00pm, 2 business days before the scheduled hearing date.

Office use only

Notice ID 5289883 **Notice Expiry Date** 14/07/2025
Lodged on 21 July 2025 03:29 PM
$74.10 application fee charged.

Residential Tenancies Act 1997

Section 91ZZO(a)

(Regulation 37)

NOTICE TO VACATE TO RENTER OF RENTED PREMISES

INFORMATION FOR RENTERS

1. This is a notice to vacate. **It tells you that the residential rental provider (rental provider) wants you to move out by a certain date.** You can find details of this date in clause 10 "Termination date" below.

2. **Challenging this notice** - You may be able to challenge this Notice at the Victorian Civil and Administrative Tribunal (VCAT). Reasons to challenge a notice include:
   - you believe you were given this notice due to unlawful discrimination or because you tried to exercise your rights as a renter; or
   - you believe it was not given to you properly; or
   - you disagree with the reason given or the information in the form is incorrect or incomplete; or
   - you have experienced family or personal violence and this caused the behavior listed in the notice to vacate. In this case, you should apply to VCAT within 30 days after the notice has been given.

   Specific timeframes may apply to certain reasons to challenge a notice. You may also challenge the validity of the notice if the rental provider applies to VCAT for a possession order.

   You should seek advice if you are considering challenging a notice to vacate.

3. **Unpaid Rent**
   If you received a notice because you have not paid your rent -
   - If you pay all of the unpaid rent on or before the termination date in the notice, this notice has no effect.
   - However, this does not apply if you have been given four earlier notices to vacate for rent arrears within a twelve-month period that starts either on the date your agreement commenced or the anniversary of that date.
   - You can find out more about this type of notice to vacate on the Consumer Affairs Victoria website.

4. **Possession orders and warrants -** Rental providers must give you the appropriate notice to vacate before they apply to VCAT for a possession order.

   If you do not vacate on the date stated in the notice, the rental provider may apply to VCAT asking for an order requiring you to leave (a possession order). VCAT will notify you of a hearing date that you can attend. You are encouraged to attend the hearing.

   At the hearing, VCAT decides whether the rental provider was entitled to give you a notice to vacate. VCAT will make a possession order if it is satisfied that it is reasonable and proportionate to do so. VCAT may consider whether the notice to vacate was given in response to the act of a person who has subjected you to family or personal violence. It may also consider whether you can comply with a payment plan for any rental arrears, if applicable.

   VCAT will decide if you must leave the property and on what date that should occur. You may ask for more time in the property if you will be in hardship. Rental providers cannot personally use force to remove you if you refuse to leave the property. Only Victoria Police can carry out a forcible eviction, and only when they are acting on a VCAT order (a warrant for possession).

5. Ending the residential rental agreement earlier - In some cases, you may be able to end the residential rental agreement (rental agreement) earlier than the termination date in the notice to vacate, if the notice is given for one of the following reasons:

   Repairs or renovations; demolition; change of use of premises; occupation by the rental provider or their family; the premises are to be sold; the premises are required for a public purpose; the renter no longer meets the eligibility criteria; or in the case of a fixed term rental agreement, to specify a termination date that is on or after the date of the end of the initial fixed term of the agreement.

   To notify the rental provider, use a Notice of intention to vacate form and provide at least 14 days notice.

6. **Seeking advice** - If you think you have grounds to challenge a notice to vacate at VCAT you should seek advice immediately by contacting one of the community legal organisations listed on the Consumer Affairs Victoria website. For further information visit the renting section of the Consumer Affairs Victoria website at consumer.vic.gov.au/renting or call **1300 558 181**.

NOTICE TO VACATE

7. Address of rented premises

1803/243 Franklin Street, MELBOURNE VIC 3000

8. Renter's Details (include the name of each renter who is a party to the residential rental agreement)

Chawakorn Kamnuansil

Podjana Tienmon

9. Rental provider's details

I am giving you this notice as the residential rental provider

Full name of Rental provider (this cannot be the agent's name):

Ting Zhang

Rental provider's address for serving documents (this may be the agent's address)

33 Camberwell Road, HAWTHORN EAST VIC 3123

Contact details

Business hours: 0398188991 (BH)

After hours:

Email address: info-mpm@areal.com.au

10. Termination Date

The termination date must allow for:

- the minimum notice required under the **Residential Tenancies Act 1997** (the Act); and
- the proposed method of delivery and the date the renter is expected to receive the notice.

The minimum number of days' notice required under the Act is 0.

I request that you vacate on or before the following termination date: 14 July 2025

Note: If you want to challenge this notice you should seek legal advice as soon as possible.

11. Reason for notice

- **The rental provider must select the relevant reason, section number and the minimum notice required under the act.**
- **The rental provider must also explain why the notice has been given. It is not enough to quote just from the Act or from the reasons on the information sheet; this must be accompanied by specific details.**
- **VCAT may find a notice to vacate invalid where it does not provide enough details or is not accompanied by the required documentary evidence.**

I am giving you this notice for the following reason:

Section 91ZL Unsafe premises

The premises are unfit for human habitation or have been destroyed totally, or to such an extent as to be rendered unsafe.

A roof leak from common property caused water to enter the bedroom, resulting in swollen plaster, bubbling paint, and visible mould. On 23 May 2025, contractor FIXD Trade Group inspected and confirmed the room is unsafe. Urgent mould remediation is required, including sealing the room, chemical treatment, and drying using industrial equipment. Drying is expected to take 7 days, followed by reinstatement of plaster and painting, with the full process taking up to 14 days.
The property will be unsafe and unsuitable to occupy during this time due to noise, equipment use, and health risks. Despite multiple written requests, the renter has refused access, preventing critical repairs.
This Notice to Vacate is issued to allow urgent works and restore the property to a habitable standard. The

renter is required to vacate by 14 July 2025.

In many cases this notice must be accompanied by documentary evidence. For information on documentary evidence go to www.consumer.vic.gov.au/ntv

Is documentary evidence attached? Yes

Please provide details of the evidence attached:

Message Thread Franklin Street (PDF)
This includes a detailed email thread between the managing agent, contractor (FIXD Trade Group), and the Owners Corporation. It provides:
Confirmation of mould presence and safety concerns
Scope of remediation works (drying, sealing, chemical treatment)
Estimated timeline for drying (7 days) plus reinstatement
Statement that the property is unsafe and inaccessible during the works
Contractor recommendation for the tenant to vacate

12. Delivery of this notice

- The notice period begins the day after the renter is estimated to receive this notice.
- If sending by post, the rental provider must allow for the delivery time in calculating the proposed termination date.
- If sending by registered post, the rental provider should keep evidence of the mail delivery method used to send this notice.

This notice was sent on 11 July 2025

This notice will be delivered

by email (if consent has been provided by the renter)

Renter's email address: bewty980219@gmail.com
ck.chawakorn@gmail.com

13. Signature of *rental provider/*agent

Sylvia Hao

*delete whichever is not applicable.

Date of notice: 11 July 2025

Notice number: 5289883

ORDER

Ref No: R2025/18214/00

VICTORIAN CIVIL AND ADMINISTRATIVE TRIBUNAL
RESIDENTIAL TENANCIES LIST
REGISTER OF PROCEEDINGS

APPLICANT(S):	
Renter	Podjana Tienmon Chawakorn Kamnuansil
RESPONDENT(S):	
Residential Rental Provider	Areal Property Hawthorn
RENTED PREMISES:	243 Franklin St Unit1803, MELBOURNE 3000
BOND NUMBER(S):	15733722

Application under *Residential Tenancies Act 1997 challenging validity of notice to vacate - residential Section 91ZZS*

V**CAT finds**:

1. The applicants have filed an application under section 91ZZS of the *Residential Tenancies Act 1997* challenging the validity of a notice to vacate.

2. The notice to vacate in question was given to the renter under section 91ZL of the Residential Tenancies Act 1997.

3. Section 91ZZS of the Residential Tenancies Act 1997 specifies that a renter may apply to challenge the validity of a notice to vacate given under section 91ZX , 91ZY, 91ZZ, 91ZZA, 91ZZB or 91ZZC. It does not allow a renter to challenge the validity of a notice to vacate given under section 91ZL.

4. Pursuant to section 75 of the *Victorian Civil and Administrative Tribunal Act 1998*, the Tribunal has formed the view on the material before it, that the application is misconceived.

5. The renters cannot preemptively challenge the notice to vacate. **However, the renters can still challenge the validity of the notice to vacate under section 91ZZI of the Act if the residential rental provider applies for a possession order on the basis of the 91ZL notice to vacate issued on 11 July 2025**.

6. **The Tribunal notes that if the parties can agree on an arrangement for the renters to move out for about 14 days, the repairs could be completed and the renters could return to the premises**.

V**CAT orders**:

1. The application is struck out with a right to apply for reinstatement.

Note: If the applicants apply for reinstatement they must provide details of why the strike out order is opposed, including a response to the findings made by the Tribunal above.

F. Gelev, Member

21 July 2025

CT - 21/07/2025 10:18

ORDER

Ref No: R2025/18589/00

VICTORIAN CIVIL AND ADMINISTRATIVE TRIBUNAL
RESIDENTIAL TENANCIES LIST
REGISTER OF PROCEEDINGS

APPLICANT(S): Residential Rental Provider	Ting Zhang
RESPONDENT(S): Renter	Podjana Tienmon Chawakorn Kamnuansil
RENTED PREMISES:	1803/243 Franklin Street, MELBOURNE 3000
BOND NUMBER(S):	15733722

Application under *Residential Tenancies Act 1997 possession - unfit or unsafe Section 322(1),91ZL*

VCAT finds:

1. The residential rental provider gave the renter notice to vacate under section 91ZL of the *Residential Tenancies Act 1997.*

2. The residential rental providerhas not proven the reasons for giving the notice to vacate.

VCAT orders:

1. The application for a possession order is dismissed.

Dr. A. Hoel, Member

14 August 2025

AH - 14/08/2025 16:03

TAX INVOICE

ABN: 65 649 347 115 | ACN: 649 347 115

Blu Projects Pty Ltd
PO BOX 4
Ringwood East, Victoria 3135
Australia

0401579930

BILL TO
Owners Corporation
PS628109BC/Highrise Strata
PO BOX 162
South Melbourne, Victoria 3205
Australia

AP@highrisestrata.com.au

Invoice Number:	3295
Invoice Date:	June 24, 2025
Payment Due:	July 24, 2025
Amount Due (AUD):	**$711.70**

Services	Quantity	Rate	Amount
Mould Remediation Site: 1803/243 Franklin Street Melbourne VIC 3004 -Attend site to commence full day repairs as per schedule. No access by the Renter or REA provided. -Trades waited 2.0 hours.	1	$334.00	$334.00
Electrical Service Site: 1803/243 Franklin Street Melbourne VIC 3004 -Attend site to commence repairs as per schedule. No access by the Renter or REA provided. -Trades waited 12.0 hours.	1	$313.00	$313.00

TAX INVOICE

ABN: 65 649 347 115 | ACN: 649 347 115

Blu Projects Pty Ltd
PO BOX 4
Ringwood East, Victoria 3135
Australia

0401579930

Subtotal:	$647.00
GST 10%:	$64.70
Total:	$711.70
Amount Due (AUD):	**$711.70**

Notes / Terms

The best compliment is a recommendation!

Thank you for your business!

Blu Projects Pty Ltd
BSB: 013-259
ACC: 429314862

*Please Quote Invoice Number on Transfer.

This Payment is a payment claim under the Building and Construction Industry Security of Payments Act 2002.

We reserve the right to add any debt collection and/or legal fees that have been incurred from the process of obtaining full payment of this invoice.

TAX INVOICE

ABN: 65 649 347 115 | ACN: 649 347 115

Blu Projects Pty Ltd
PO BOX 4
Ringwood East, Victoria 3135
Australia

0401579930

BILL TO
Owners Corporation PS628109B 3 / Highrise Strata
PO BOX 162
South Melbourne, Victoria 3205
Australia

AP@highrisestrata.com.au

Invoice Number:	3417
Invoice Date:	September 10, 2025
Payment Due:	October 10, 2025
Amount Due (AUD):	**$453.20**

Services	Quantity	Rate	Amount
Mould Remediation Date: 03/09/2025 Site: 1803/243 Franklin Street Melbourne VIC 3004 -Attend site to commence full day repairs as per schedule. The affected bedroom was occupied by the Renter's contents. -The renter refused to remove the contents and requested repairs do not commence.	1	$412.00	$412.00

Subtotal:	$412.00
GST 10%:	$41.20
Total:	$453.20
Amount Due (AUD):	**$453.20**

Notes / Terms

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Thank you for your business!

Blu Projects Pty Ltd

TAX INVOICE

ABN: 65 649 347 115 | ACN: 649 347 115

Blu Projects Pty Ltd
PO BOX 4
Ringwood East, Victoria 3135
Australia

0401579930

BSB: 013-259
ACC: 429314862

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TAX INVOICE

ABN: 65 649 347 115 | ACN: 649 347 115

Blu Projects Pty Ltd
PO BOX 4
Ringwood East, Victoria 3135
Australia

0401579930

BILL TO
Owners Corporation PS628109B 3 / Highrise Strata
PO BOX 162
South Melbourne, Victoria 3205
Australia

AP@highrisestrata.com.au

Invoice Number:	3443
Invoice Date:	September 19, 2025
Payment Due:	October 19, 2025
Amount Due (AUD):	**$453.20**

Services	Quantity	Rate	Amount
Mould Remediation Date: 17/09/2025 Site: 1803/243 Franklin Street Melbourne VIC 3004 -Attend site to commence full day repairs as per schedule. The affected bedroom was occupied by the Renter's contents. -The renter refused to remove the contents and requested repairs do not commence as per the Renter SMS provided.	1	$412.00	$412.00

Subtotal:	$412.00
GST 10%:	$41.20
Total:	$453.20
Amount Due (AUD):	**$453.20**

Notes / Terms

The best compliment is a recommendation!

Thank you for your business!

TAX INVOICE

ABN: 65 649 347 115 | ACN: 649 347 115

Blu Projects Pty Ltd
PO BOX 4
Ringwood East, Victoria 3135
Australia

0401579930

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BSB: 013-259
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ABN: 65 649 347 115 | ACN: 649 347 115

Blu Projects Pty Ltd
PO BOX 4
Ringwood East, Victoria 3135
Australia

0401579930

BILL TO
Owners Corporation 709898T / Highrise Strata
PO BOX 162
South Melbourne, Victoria 3205
Australia

AP@highrisestrata.com.au

Invoice Number:	3444
Invoice Date:	September 19, 2025
Payment Due:	October 19, 2025
Amount Due (AUD):	**$316.80**

Services	Quantity	Rate	Amount
Electrical Service Date: 02/09/2025 Site: 1803/243 Franklin Street Melbourne VIC 3004 Job Description: -Disconnect 1 x GPO, 1 x down light and 1 x smoke detector to facilitate mould remediation.	1	$288.00	$288.00

Subtotal:	$288.00
GST 10%:	$28.80
Total:	$316.80
Amount Due (AUD):	**$316.80**

Notes / Terms
The best compliment is a recommendation!

Thank you for your business!

Blu Projects Pty Ltd
BSB: 013-259

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